

FILED
CLERK OF MISSISSIPPI
LAFAYETTE COUNTY
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER

2020 SEP 30 PM 12:48

PLAINTIFF

vs.

CLERK: CLEMM

CAUSE NUMBER: CV-2016-422W

MATTHEW OLIVER REARDON

RA

DEFENDANT

PETITION FOR MODIFICATION AND OTHER RELIEF

COMES NOW the Plaintiff, Phyllis Marie Crowder, and files this her Petition for Modification and Other Relief against the Defendant, Matthew Oliver Reardon, and in support thereof would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Matthew Oliver Reardon, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at his residence in Lafayette County, Mississippi, or wherever he may be found.

3.

That on May 22, 2018, This Court entered an Agreed Order of Modification regarding child visitation, a true and correct copy of which is attached hereto as Exhibit "A".

4.

That there has been a material change in circumstance that has adversely affected the minor child and therefore visitation with the Defendant has ceased. The Defendant abuses alcohol and/or other prescription or non-prescription drugs to the point that he no longer safely monitors the minor child while she is in the Defendant's care which has caused physical injury to the minor child at the hands of the Defendant's current wife at which point visitation with the Defendant ceased. The incident was reported to the State of Mississippi Child Protective Services and in the interim, the Plaintiff was advised to cease all visitation with the Defendant. The Plaintiff therefore requests the

Court and for a Guardian Ad Litem to be appointed for the minor child.

5.

Additionally the Plaintiff would show that the Defendant's behavior has become erratic both on social media and in person and the Plaintiff fears for the safety of the minor child for the Defendant to be exercising the current visitation in the midst of the pandemic.

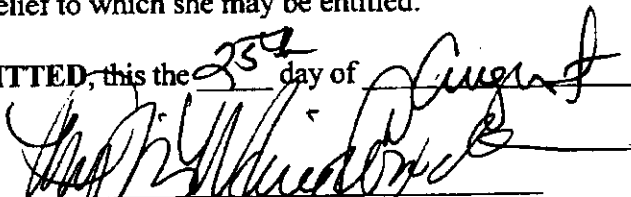
6.

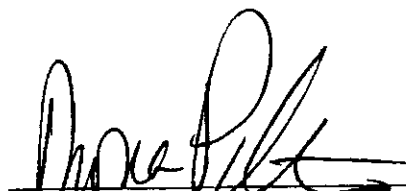
Plaintiff would show that Defendant Matthew Oliver Reardon should be required to pay to the Petitioner, Phyllis Marie Crowder, a reasonable sum as attorney's fees for having to bring forth this action and that all costs of Court should be taxed to Matthew Oliver Reardon.

WHEREFORE, PREMISES CONSIDERED, Plaintiff Phyllis Marie Crowder respectfully requests that the Court grant unto her the following relief:

1. That the Court find that there has been a material change in circumstances which have had an adverse effect on the minor child and that visitation with the Defendant cease.
2. That Phyllis Marie Crowder be awarded reasonable attorney's fees and costs suffered in bringing this matter; and,
3. That if mistaken for the relief prayed for and entitled to, then the Plaintiff prays for such other, further, general, specific or special relief to which she may be entitled.

RESPECTFULLY SUBMITTED, this the 25th day of August, 2020.

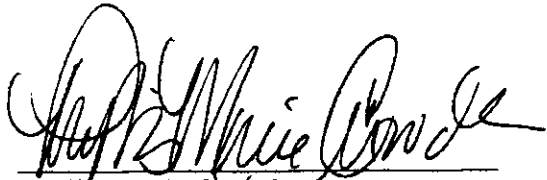

PHYLLIS MARIE CROWDER


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STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

Personally appeared before me, the undersigned authority in and for the aforesaid County and State, the within named, Phyllis Marie Crowder, who, after being first duly sworn, states that the matters contained in the above and foregoing Petition for Citation of Contempt are true and correct as therein stated.

This the 25 day of August 2020.

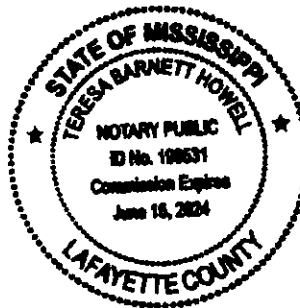

Phyllis Marie Crowder

SWORN TO AND SUBSCRIBED BEFORE ME, this the 25 day of August 2020.


NOTARY PUBLIC

MY COMMISSION EXPIRES:

6/15/2024



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STATE OF MISSISSIPPI
LAFAYETTE COUNTY

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW OLIVER REARDON

CHANCERY CLERK

PLAINTIFF

CAUSE NO.: CV2016-422W

PHYLLIS MARIE CROWDER

PLAINTIFF

AGREED ORDER FOR MODIFICATION

THIS CAUSE having come before the Court on the Motion To Modify Prior Order Of The Court and the Court having been advised that the Parties have reached an agreement in this cause and the Court finding that said agreement is in the best interest of the child of the parties and therefore the Court adopts the Agreed Order as order of the Court and therefore orders as follows:

IT IS THEREFORE ORDERED AND ADJUDGED that there has been a material change in circumstances in this cause and accordingly the Petitioner, Matthew Reardon, is ordered and allowed visitation with the minor child of the parties, namely, Lydia Elise Reardon, as follows:

1. Beginning January 1, 2018, Matthew Reardon shall have visitation with the said minor child every other week-end from 5:00 p.m. Friday afternoon until 5:00 p.m. Sunday afternoon at his residence in Water Valley, Mississippi.
2. The Parties, Matthew Reardon and Phyllis Crowder, mutually agree to meet at the Water Valley Police Department, or some other mutually agreed upon location outside of Lafayette County, Mississippi, for exchange of the child for visitation purposes.
 - A. Summer
Matthew Reardon shall have visitation with the minor child for (4) four weeks during the summer to be exercised as agreed upon by Parties.



B. Holidays

<u>HOLIDAY</u>	<u>EVEN YEAR</u>	<u>ODD YEAR</u>
New Year's Day	Father	Mother
Easter Day	Mother	Father
Memorial Day	Father	Mother
July 4 th Day	Mother	Father
Labor Day	Father	Mother
Thanksgiving Day	Mother	Father

Father shall further have visitation on every even numbered year from December 25th at twelve o'clock (12:00) p.m. until December 31st at six o'clock (6:00) p.m.

On every even numbered year, Father shall enjoy visitation with the parties' minor child during Christmas holidays every odd numbered year from December 20th at six o'clock (6:00) p.m. until December 25th at 12:00 p.m.

For the Christmas holidays of December, 2017, the parties agree that Matthew Reardon shall have visitation as mutually agreed between the parties but no less than (4) four hours on Christmas Eve and/or (4) four hours Christmas Day and 3 other consecutive days during said holidays.

C. Special Days

1. Father's Day

That Father shall have visitation regardless of whose weekend it may fall on Father's Day from eight o'clock (8:00) a.m. until six o'clock (6:00) p.m.

2. Mother's Day

That Mother shall have visitation regardless of whose weekend it may fall on Mother's Day from eight o'clock (8:00) a.m. until six o'clock (6:00) p.m.

3. Child's Birthday

Each parent shall have one day of visitation with the minor child on or near her birthday, regardless of the visitation set out herein.

D. Other

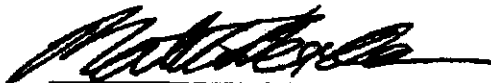
Father shall have other reasonable visitation with the minor child as agreed upon by the parties.

3. That the restraining order entered by this Court on May 9, 2017, is hereby ~~cancelled~~ ^{dismissed} ^{Revised} as to Matthew Reardon and Phyllis Crowder and the above mentioned minor child of the parties.
4. All other matters and issues addressed and ordered by the Court shall remain in full force and effect.

SO ORDERED this the 22nd day of May, 2018

Romona Watson
CHANCELLOR

AGREED TO BY:


MATTHEW REARDON


WILLIAM C. STENNETT,
Attorney for Matthew Reardon


PHYLLIS CROWDER

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